

Metropolitan Planning Commission Meeting August 12th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=KOf0aTL5zel
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Delaware Muncie Metropolitan Planning Commission: Special Meeting Report

Meeting Date: (Date not explicitly spoken, but referencing June/August 2025 timelines)

Body: Delaware Muncie Metropolitan Planning Commission

Report Prepared By: Expert Civic Analyst

1. Pre-Meeting Hearings & Committee Work Sessions

The transcript does not contain a separate statutory public hearing or committee work session held immediately prior to calling the regular meeting to order; this section is omitted.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the special meeting of the Delaware Muncie Metropolitan Planning Commission [00:12:12](#), emphasizing rules of order, mutual respect, and the singular purpose of making a recommendation on the solar ordinance submitted by the county commissioners [00:14:19](#).
- **Attendance:**

- **Members Present:** Mr. Borchers, Mr. Brand, Mr. Carol, Mr. Clark, Mr. Curley, Miss Hensley, Mr. Landis, Miss Owen, Miss Cyp (or Sykes), and Mr. Smith. (Note: Roll call confirms all 9 voting members present [00:18:09](#)).
- **Members Absent:** None.
- **Presiding Officer:** Identified as the President of the Commission.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:12:34](#).
- **Approval of Minutes:** *Not addressed in this transcript segment.*

4. Substantive Business & Board Action

- [03:24:25](#) **MPC04-25A: Consideration of Text Amendments & Replacements for Solar Facilities and Commercial Battery Energy Storage Systems (CBES)**
 - **Sponsor / Presenter:** Delaware County Commissioners / DMMPC Staff.
 - **Deliberation Summary:** The commission reviewed a newly drafted 20-page ordinance (and associated CBES requirements) replacing previous versions. Extensive debate centered on setbacks (500 ft vs. 250 ft), property value guarantees, prime farmland caps (20%), and economic development agreements (EDAs). Staff presented numerous non-substantive text cleanups, structural corrections, and agency/title replacements.
 - **Item-Specific Public Input:**
 - *Pro-Solar / Developer Representatives & Landowners (e.g., Mara Hoff, Charles Lancaster, Joe Russell, Sarah Williams, David Clifford, Geronimo Power/Invenergy reps):* Argued that the ordinance as proposed by commissioners is overly restrictive and acts as a “deal killer.” Emphasized compliance with the 2022 Comprehensive Plan encouraging green energy, protecting farmland through temporary rest, providing supplemental income for family farms, boosting local tax bases, and aligning with neighboring counties (Randolph, Jay) and union labor (Carpenters).
 - *Anti-Solar / Concerned Citizens & Opponents (e.g., Loren White, Autumn Grismore, Stephen Hines, Jules Carter, Tim Carter, Cheryl Dawson):* Argued for strong protections, citing risks to property values, industrial encroachment on agricultural land, noise nuisances (inverters/pure tones), fire and safety hazards associated with Battery Energy Storage Systems (BESS/CBES) thermal runaway, drainage disruptions, and loss of rural character.
 - **Action & Vote Disposition:**
 - A bulk motion to adopt administrative and structural text amendments carried with an 8-1 roll call vote (Mr. Landis voting “no”) [04:34:32](#).

- An amendment regarding protected nature areas following federal guidelines carried 6-3 [03:58:33](#).
- A final motion for a **Favorable Recommendation** to the county commissioners on the amended ordinance passed with an 8-1 roll call vote [04:14:52](#).

5. Open Public Comment / Citizen Forum

(Note: Public comments were integrated into the primary hearing structure for the agenda item, divided strictly between proponents and opponents).

- [00:18:40](#) **Mara Hoff**: Attorney representing Geronimo Power; spoke in favor, emphasizing economic investment, comprehensive plan goals, and requested setback reductions to 250 ft and removal of property value bonds.
- [00:26:45](#) **Gary Gates**: Landowner in Hawthorne solar project; spoke in favor, discussing property distances and state setback code.
- [00:29:43](#) **Charles Lancaster**: Local landowner and leaseholder; spoke in favor of stabilizing farm income.
- [03:01:06](#) **Joe Russell**: Committee member on original Marta Moody ordinance; spoke in favor of reinstating original standards.
- [03:34:18](#) **Sarah Williams**: Community member; spoke in favor of clean energy transition and meeting state industrial/data center demands.
- [03:37:01](#) **Holly Hanau**: Addressed Randolph County's successful tax abatement and Economic Development Agreement (EDA) models.
- [03:39:21](#) **Linda Hansen**: Speaking for League of Women Voters; urged enactment of a responsible, vetted solar framework.
- [03:42:10](#) **Tim Hines & Jacob Renion**: Central Midwest Carpenters; spoke in economic favor of long-lasting local skilled trade jobs and pension impacts.
- [03:45:24](#) **Linda Richie**: Local landowner in Gaston project; spoke in favor of land diversification and ag preservation.
- [03:48:27](#) **David Clifford**: Invenergy senior associate; spoke against section 11 property value guarantees due to enforceability issues.
- [03:51:19](#) **Cheryl Swingley**: Provided marked-up text analysis; highlighted flaws in decommissioning and prime farmland definitions.
- [03:54:05](#) **Mike Catron**: Local generational farmer; spoke in favor of land stewardship and energy efficiency.
- [03:56:26](#) **Karen Irving Marino**: Estate representative and project participant; urged rejecting commissioner restrictions.
- [03:59:25](#) **Justin Stevens**: Local resident and union foreman; shared boots-on-the-ground experience regarding economic vitality of solar builds.

- **04:02:20 Sue Arrington:** State Representative; spoke against property value guarantees and cited Ball State economic research.
- **04:05:15 Annette Rose:** Addressed overreach regarding residential solar and battery storage conflicts with state law.
- **04:08:10 James Moore:** Co-owner in Albany project; urged returning to Marta Moody ordinance and rejecting 500-ft setbacks.
- **04:11:12 Sarah Vitali:** Chair of Muncie Resists; spoke in favor of utility solar and community-backed advocacy.
- **04:13:41 Tom Stra:** Local resident with residential solar; spoke in favor of environmental footprints.
- **04:16:59 Dan Barry:** Local landowner and leaseholder; addressed drainage and flood plane compatibility.
- **04:19:49 Lisa Oliver:** Center for Energy Education; recommended 250-ft setbacks and cautioned against unworkable property value guarantees.
- **04:22:39 Phil Gift:** Local candidate/resident; advocated for individual land use rights and income optimization.
- **04:25:02 Hunter Jones:** Indiana Conservative Alliance for Energy; highlighted agricultural output comparisons and private investment.
- **04:27:21 Rick Yenser:** Author/journalist; discussed grid stress, data center demands, and regional renewable development.
- **04:29:56 Aries Drake:** Citizen; spoke in favor of power grid resilience, national security, and diversification.
- **04:32:27 Daniel Straa:** Land and Liberty Coalition; emphasized private property rights and upholding landowner choices.
- **04:34:45 Loren White:** Attorney representing Delaware County Concerned Citizens; presented legal brief and binders arguing against noise, health, environmental, and property value degradation.
- **04:15:51 Doug Marshall:** Local resident; spoke in support of a strong protective ordinance covering decommissioning and safety.
- **04:19:10 Autumn Grismore:** Local resident; presented real estate case studies regarding scenic views and property value impacts.
- **04:22:29 Stephen Hines:** Local resident; supported 500-ft setbacks, inverter noise regulations, and enclosure protections.
- **04:35:35 Jules Carter:** Local resident; testified regarding "pure tone" noise health effects from inverters.
- **04:28:08 Mike Johnson:** Local resident; supported maintenance plans and hazardous leak reporting requirements.
- **04:31:35 Brian Hayes:** Local homeowner; supported strict decommissioning, bonding, and restoration plans.
- **04:34:53 Greg Kyle:** Local resident; supported surety bonds, road use agreements, and transfer-of-ownership liabilities.

- **04:37:38 Alan Goel:** Lifelong resident; presented Michigan State economic loss studies regarding agricultural revenue displacement.
- **04:41:18 Kelsey Morris:** Descendant of generational farmers; emphasized prime farmland definitions and agricultural rankings.
- **04:44:43 Matt Kz:** County Council member; cautioned against flawed economic comparisons between Delaware and Randolph counties.
- **04:48:11 Tim Carter:** Local resident; presented density comparisons and BESS (Battery Energy Storage Systems) thermal runaway/fire risks near Muncie.
- **04:51:45 Cheryl Dawson:** Local homeowner; objected to the word “occupied” in setback dwelling definitions.
- **04:55:30 Ryan Richards:** 10th-generation farmer; raised concerns regarding subsurface drainage tiles and pylon disruptions.
- **04:58:58 Thomas Richards:** Local farmer; stressed agricultural heritage, long-term soil health, and risks of solar expansion.
- **05:03:09 Tim Nickham:** Local property owner; reviewed lease counts showing concentration among few entities versus total landowners.
- **05:06:39 Janet Gernand:** State Delegate/precinct chair; read letters from Randolph County farmers regarding cash rent inflation and farmland loss.
- **05:10:13 Ron Crouch:** Local resident; shared personal investment and lifestyle disruption concerns following developer letters.
- **05:13:45 Mike Kelly:** Retired teacher and resident; expressed concern over property assessment values and industrial enclosure.

6. Administrative Updates & Adjournment

- **Staff / Board Announcements:** The favorable recommendation will be forwarded to the County Commissioners. If deadlines are missed for the August 18th meeting, the item will be heard on **September 2nd at 9:00 AM** in the Commissioners’ Courtroom at the Delaware County Building.
 - **Adjournment:** Meeting adjourned following a motion by the board **04:16:26**.
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